

25VECV04524 25VECV04524

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-13

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CU%2C07%2F13%2F2026

Source SHA-256: b3a4f4cfe2a5902e6fa7612d4d113c347592c46096bb7e94121b9f21d08ee226

Case Number: 25VECV04524 Hearing Date: July 13, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

JOE ALAN MYERS, an
individual,

Plaintiff,

vs.

DOMINICK ERIC BOGATAY, an individual;
and DOES 1-25, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 25VECV04524

[TENTATIVE] RULING RE: PLAINTIFF'S
MOTIONS TO COMPEL DEFENDANT'S INITIAL RESPONSES TO DISCOVERY; MOTION TO DEEM
MATTERS IN REQUESTS FOR ADMISSIONS ADMITTED

Dept. U

8:30 a.m.

July 13, 2026

I.

BACKGROUND

This case arises from a motor vehicle
accident that occurred on June 1, 2024.

On August 12, 2025, Plaintiff Joe
Alan Myers filed his original complaint against Defendant Dominick Eric Bogatay.

On
August 14, 2025, Plaintiff filed his first amended complaint against Defendant,
alleging: (1) motor vehicle negligence; and (2) general negligence.

On

October 17, 2025, Defendant filed his answer to the complaint.

On

October 30, 2025, Plaintiff served requests for production of documents (the “RFPs”), form interrogatories (the “FROGs”), special interrogatories (the “SROGs”), and requests for admissions (the “RFAs”) on Defendant. Defendant failed to timely respond to the RFPs, the FROGs, the SROGs, and the RFAs.

(Mirza decl., ¶¶ 2-5.)

On

March 3, 2026, Plaintiff filed his motions to compel Defendant’s initial responses to the RFPs, the FROGs, the SROGs, and the RFAs.

On

March 31, 2026, Defendant belatedly served his responses to the RFPs, the FROGs, the SROGs, and the RFAs on Plaintiff.

Defendant subsequently paid Plaintiff attorneys’ fees incurred in connection with Plaintiff’s several discovery motions. (Sadaka decl., ¶¶ 3-4.)

On

June 29, 2026, Defendant filed his opposition brief as to Plaintiff’s several discovery motions.

On

July 6, 2026, Plaintiff filed his reply brief.

II.

LEGAL STANDARD

a. Motion to

Deem Requests for Admission Admitted

Where there has been no timely response to requests for admissions, the demanding party may seek an order “that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.” Code Civ. Proc., § 2033.280 (b). The trial court shall grant the motion unless it finds that the party of whom the demand is being made responded to the demand before the motion’s hearing. Code Civ. Proc., § 2033.280 (c).

b. Motion to Compel Initial

Responses to Requests for Production of Documents

Where

there has been no response to a demand to produce documents, the demanding party may seek an order compelling a response. Code Civ. Proc., § 2031.300.

c. Motion to Compel Initial

Responses to Interrogatories

If a party to whom interrogatories are directed fails to

serve a timely response, the demanding party may move for an order compelling a response. Code Civ. Proc., § 2030.290.

III.

DISCUSSION

Plaintiff moves to

compel Defendant's initial responses to the RFPs, the FROGs, and the SROGs. Plaintiff also moves to deem matters in the RFAs admitted against Defendant. The motions are denied.

On

October 30, 2025, Plaintiff served the RFPs, the FROGs, the SROGs, and the RFAs on Defendant. On March 31, 2026,

Defendant served his responses. Though

Defendant's responses were provided beyond the statutory deadline to respond,

Defendant's provision of initial responses means that Plaintiff is not entitled

to orders compelling Defendant's initial responses to discovery. Initial discovery has already been provided. Defendant's provision of initial responses

also means Plaintiff is not entitled to an order deeming matters in the RFAs

admitted against Defendant. See Code

Civ. Proc., §§ 2030.290, 2031.300, 2033.280.

Defendant has also already paid Plaintiff's attorneys' fees, thus there

is no need for the Court to address issues related to monetary sanctions.

Plaintiff

argues the Court should find otherwise because Defendant's initial responses include objections. Plaintiff reasons

that because Defendant waived objections by failing to timely respond to

discovery, the fact that Defendant's initial responses include objections means

the Court should go ahead and rule on Plaintiff's motions to compel initial discovery. The Court disagrees.

Plaintiff

cites no legal authority for his position that including objections in initial responses when objections were waived means the trial court may compel additional initial responses to discovery without the propounding party needing to file a motion to compel further. If

Plaintiff believes Defendant's initial responses to discovery are insufficient (either because Defendant waived objections or for some other reason), Plaintiff needs to file a motion to compel further. Plaintiff has filed no such motion.

Rather

than Plaintiff filing a noticed motion to compel further and/or Defendant filing a noticed motion for relief from waiver of objections, the Court strongly encourages the parties to resolve these discovery issues informally. It is not this Court's

policy to award discovery motions that could have been avoided had counsel communicated and worked in good faith to move the case forward rather than persisting with unnecessary discovery disputes.

The

motions are denied.

IV.

CONCLUSION

Plaintiff Joe Alan Myers' motions to compel Defendant Dominick Eric

Bogatay's initial responses

to form interrogatories, special interrogatories, and requests for

production of documents are DENIED. Plaintiff Joe Alan Myers' motion to deem matters in

requests for admission admitted against Defendant Dominick Eric

Bogatay is DENIED.

Defendant Dominick Eric Bogatay is ORDERED to give notice.

DATED: July 13, 2026

Lee

Arian

Judge of the
Superior Court